

Call for tenders: OSHA/2026/OP/0022

Provision of ICT services: Project Management Support, Phone Maintenance and Microsoft Maintenance and Developments

Open procedure

TENDER SPECIFICATIONS

Contracting Authority:

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1. SCOPE AND DESCRIPTION OF THE PROCUREMENT

1.1. Contracting authority: who is the buyer?

This call for tenders is launched and managed by the European Agency for Safety and Health at Work (EU-OSHA), referred to as the contracting authority for the purposes of this call for tenders.

1.2. Subject: what is this call for tenders about?

The subject of this call for tenders is "Provision of ICT services: Project Management Support, Plone Maintenance and Microsoft Maintenance and Developments.

1.3. Lots: is this call for tenders divided into lots?

This call for tenders is divided into three lots:

Lot number	Lot title
Lot 1	Project Management Support (PMS)
Lot 2	Plone Maintenance
Lot 3	Microsoft Maintenance and Developments

Each lot will be assessed independently of any other lot. Tenders which cover only part of one lot or are declared as being conditional on the award of any other lots are not permitted.

Due to the coordination and monitoring role of Lot 1, the successful tenderer for Lot 1 must remain independent from the technical delivery of the services covered by the other lots. The successful tenderer for Lot 1 must not be in a situation of conflict of interest and must not be awarded or perform services under Lot 2 or Lot 3. The same restriction will apply to contracts signed under previous procedure¹.

Tenderers are allowed to submit tenders for Lot 1 and for Lot 2 and/or Lot 3. However, if the same tenderer is ranked first for Lot 1 and for Lot 2 and/or Lot 3, Lot 1 shall take priority. In such a case, the tenderer may be awarded Lot 1 only and shall not be awarded Lot 2 or Lot 3. The contracting authority will then award Lot 2 and/or Lot 3 to the next highest-ranked compliant tenderer for the relevant lot.

¹ Provision of ICT services: ICT Helpdesk, Web Hosting, and Web Developments and Maintenance (Lot 2 and 3)

1.4. Description: what do we want to buy through this call for tenders?

The purchases that are the subject of this call for tenders, including any minimum requirements, are described in detail below.

Variants (alternatives to the model solution described in the tender specifications) are not allowed for any lot. The contracting authority will disregard any variants described in a tender.

1.4.1. Background and objectives for Lot 1

Within the framework of its ICT strategy and ongoing digital activities, EU-OSHA manages a portfolio of ICT, web, business application and infrastructure-related projects. These projects require structured coordination, clear governance, reliable planning, workload and budget monitoring, risk management, quality assurance and regular reporting to ensure that expected outcomes are delivered on time, within scope and in accordance with applicable technical, organisational and security requirements.

EU-OSHA intends to find a contractor under Lot 1 to provide “Project Management Support (PMS)” services. The contractor will assist the ICT Manager, project owners and the ICT team throughout the lifecycle of ICT projects, from initiation and planning to execution, monitoring, delivery, closure and lessons learned.

The main objective of Lot 1 is to strengthen EU-OSHA's project management capacity by providing professional, flexible and results-oriented support in the management and coordination of ICT projects. The contractor will be expected to contribute to the successful implementation of current and future ICT initiatives, including projects related to application maintenance, software development, platform evolution, service continuity, business process improvement and technical change management.

The contractor may also be required to support the coordination and monitoring of activities performed by other ICT contractors. In this context, the contractor shall monitor and follow-up on tasks, risks, dependencies, deliverables, deadlines and service levels, and report to EU-OSHA as appropriate.

The current list of EU-OSHA websites and applications can be found in [Appendix 2: List of EU-OSHA existing websites and applications](#).

1.4.2. Background and objectives for Lot 2

In 2009, EU-OSHA initiated the development of the OiRA (Online interactive Risk Assessment) application, a solution built on the Plone CMS framework. Inspired by the Dutch “RI&E” model, OiRA was designed to enable national occupational safety and health stakeholders, including ministries, labour inspectorates to become national OiRA partners and to provide micro and small enterprises (MSEs) with accessible digital tools for carrying out occupational safety and health risk assessments.

Since 2026, the Dangerous Substances e-guide has also been integrated into the OiRA framework. It uses the same software basis as other OiRA tools, while operating under its own dedicated subdomain. The tool is currently available in English and in nine country-specific versions in the respective national languages. The maintenance and evolution of this component shall therefore be considered part of the overall Lot 2 scope, where applicable.

The OiRA platform has become a critical pan-European digital infrastructure supporting occupational safety and health risk prevention across Europe. The platform currently includes:

- more than 360,000 registered users;
- more than 600,000 risk assessments started to date;
- more than 200,000 new risk assessments initiated over the last two years;
- a network of 18 national OiRA partners managing national content and tools.

The application operates according to a centralised “core-and-satellite” model. The core backend is maintained centrally by EU-OSHA in English and provides the administrative, functional and logic engine of the platform. The frontend is localised and made available in the national languages of the partner countries, allowing partners to adapt tools and content to their national occupational safety and health contexts.

EU-OSHA provides the financial, functional and technical framework required to ensure that the core OiRA application remains secure, performant, reliable and aligned with legislative, technological and user-driven developments. In this context, the platform must be maintained and evolved continuously in order to respond to the needs of national partners, end-users and the wider occupational safety and health community. EU-OSHA has further developed a so-called OiRA HUB based on Plone, which includes additional support features for OiRA partners to be used when developing tools and networking with other OiRA partners. Besides the OiRA creator for tool development, this platform includes a library, where OiRA networking documents and guidance such as an editor's guide as well as tutorials are stored. The platform also includes a picture library which enables partners to easily identify, share and use pictures for tool development, while following strict copyright rules. Finally, the platform also allows partners to send out newsletters to end-users who subscribed using the OiRA tools.

Another part of the OiRA project is the statistics data base Metabase, which is used to display national and EU level statistics on the use of OiRA.

The objective of Lot 2 is to ensure the maintenance, support, security and continuous evolution of the Plone-based OiRA platform, its national versions and related tools. The contractor will be responsible for maintaining the stability and quality of the existing Plone environment, providing corrective, preventive, adaptive and evolutionary maintenance, supporting technical changes, and ensuring that the platform remains available, secure, scalable and fit for purpose.

The contractor will also be expected to support EU-OSHA in assessing technical options, identifying improvements and providing expert input for discussions on new and innovative features or solutions. This support shall help ensure that the OiRA platform remains up to date, relevant and aligned with EU-OSHA's evolving needs, national partners and end-users.

The current list of EU-OSHA websites and applications can be found in [Appendix 2: List of EU-OSHA existing websites and applications](#).

1.4.3. Background and objectives for Lot 3

EU-OSHA relies on Microsoft technologies for several applications, platforms and tools that are essential to its day-to-day operations, internal collaboration, information management and business processes. These solutions support EU-OSHA's staff in carrying out operational, administrative, communication and stakeholder management activities in an efficient and secure manner.

The current Microsoft environment includes (but is not limited to) applications and services based on Microsoft SharePoint, Microsoft Dynamics 365 / CRM, Microsoft 365, Microsoft Teams, Microsoft Power Platform, Microsoft SQL, Microsoft Exchange, Windows, Microsoft Active Directory / Entra ID and Microsoft Azure. This environment may evolve during the duration of the framework contract in line with EU-OSHA's operational needs, technological developments and Microsoft's product roadmap.

EU-OSHA currently uses Microsoft-based applications such as its intranet, developed on Microsoft SharePoint, its Client Relationship Management solution, based on Microsoft Dynamics 365 / CRM, applications developed with Power Platform, and dashboard using Power BI. These applications are important for internal communication, collaboration, stakeholder management and business continuity. They require regular maintenance, updates, support, technical improvements and adaptation to evolving business requirements.

The objective of Lot 3 is to ensure the development, maintenance, support, modernisation and continuous improvement of EU-OSHA's Microsoft-based applications and related services. The contractor shall provide the technical expertise, resources and methodologies required to keep existing applications stable, secure, performant and fit for purpose, while also supporting the development of new Microsoft-based solutions.

The management and administration of Microsoft platforms remain under the responsibility of EU-OSHA ICT staff. However, EU-OSHA requires specialised external support for areas such as configuration and security review, incident and bug management, updates, enhancements, best-practice guidance, technical recommendations and support for the implementation of Microsoft-based solutions.

In particular, Lot 3 pursues the following objectives:

- **Modernisation and enhancement of existing Microsoft-based solutions:** EU-OSHA seeks to modernise and enhance its existing Microsoft-based systems in order to improve functionality, performance, security, maintainability and user experience. The aim is to streamline business processes, increase organisational productivity and ensure that current solutions continue to meet evolving operational, organisational and technological requirements.
- **Development of new digital solutions:** EU-OSHA may request the design and implementation of new solutions based on Microsoft technologies to address specific business needs and organisational challenges. The objective is to leverage the Microsoft ecosystem to deliver innovative, secure, scalable and efficient solutions that support EU-OSHA's strategic objectives and improve overall effectiveness.
- **Specialised technical support for Microsoft platforms:** While the day-to-day administration and management of Microsoft-based solutions remain under the responsibility of EU-OSHA ICT staff, specialised external support is required in areas such as platform configuration, architecture reviews, security assessments, best-practice guidance, incident and problem management, troubleshooting, and the implementation of updates and enhancements.

Through these objectives, EU-OSHA aims to strengthen its digital capabilities, improve operational efficiency, enhance service quality and provide an improved user experience for both internal and external stakeholders.

The current list of EU-OSHA websites and applications can be found in [Appendix 2: List of EU-OSHA existing websites and applications](#).

1.4.4. Detailed characteristics of the purchase common for all lots

The requirements set out in this section apply to all lots, unless otherwise specified in the lot-specific sections. They are part of the minimum requirements for all lots.

Methodology

EU-OSHA may apply a tailored project management framework based on PM² / Open PM² best practices for the overall management of projects and services. Contractors may therefore be required to contribute to project management artefacts such as:

- project initiation requests;
- business cases;
- project charters;
- project plans;
- project status reports;
- risk and issue logs;
- change logs;
- decision logs;
- lessons learned reports.

For software development, maintenance and application evolution, EU-OSHA may use “Agile”, “Scrum” or equivalent iterative delivery methods. Contractors shall be able to work with iterative planning, backlog management, prioritisation, sprint-based delivery, review sessions and continuous improvement practices where applicable.

Contractors shall adapt their methodology to the size, complexity, urgency and criticality of each request while ensuring traceability, quality and timely delivery.

Tools

Contractors shall use the tools made available or required by EU-OSHA for the implementation of the services. These tools may include, but are not limited to:

- EU-OSHA's issue tracker, currently JIRA;
- EU-OSHA versioning repositories, currently GitHub;
- EU-OSHA documentation and knowledge management tools, currently Confluence;
- EU-OSHA DevSecOps & CI/CD platforms, currently Jenkins;
- collaborative platforms such as Microsoft Teams, SharePoint or equivalent.

More details are provided in [Appendix 3: List of EU-OSHA tools](#).

Contractors shall comply with EU-OSHA's rules and procedures for the use of these tools.

Collaboration and coordination

Contractors shall work in close cooperation with EU-OSHA's ICT team, project owners, business stakeholders and, where relevant, other contractors involved in EU-OSHA ICT activities.

Where coordination with other contractors is required, contractors shall:

- ensure clear and timely communication;
- record relevant information in the designated tools;
- identify dependencies, risks and blocking points;
- provide status updates and technical input when requested;
- contribute to planning, release coordination and reporting;
- escalate issues to EU-OSHA when required.

The contractor responsible for Lot 1 shall support EU-OSHA in monitoring and coordinating ICT activities but shall not replace the technical responsibility of contractors responsible for the technical lots.

Language

The working language for the implementation of the contracts shall be English.

All documentation, reports, meeting minutes, specifications, training material and other deliverables shall be provided in English, unless otherwise requested by EU-OSHA.

For Lot 2, the OiRA platform includes multilingual content and country-specific tools. However, unless otherwise specified, development, technical documentation, reporting and contractual communication shall be carried out in English. Automated translation is however often necessary to adapt specific parts of the software to the various languages used.

Kick-off meeting

A kick-off meeting shall be organised after the signature of the framework contract for each lot. The meeting shall take place at EU-OSHA's premises in Bilbao, Spain, or online, at EU-OSHA's discretion.

The purpose of the kick-off meeting shall be to review and confirm all contractual, operational, technical and organisational arrangements related to the implementation of the framework contract, including but not limited to:

- governance and communication arrangements;
- key contact persons and escalation channels;
- procedures for issuing and managing specific contracts or order forms;
- use of EU-OSHA tools and repositories;
- reporting obligations;
- service level monitoring;
- security requirements;
- data protection requirements;
- delivery and acceptance procedures;
- handover and knowledge management arrangements.

EU-OSHA may organise a one-day onboarding session for the key personnel of the contractor identified in the tender. All attendees shall correspond to the profiles proposed in the tender, unless otherwise approved in advance by EU-OSHA.

As explained in 1.5 - Place of performance: where will the contract be performed?, the contractor shall bear all associated costs, including travel, accommodation, subsistence allowances and personnel costs.

Handover

At the end of the contract period, or in the event of early termination, the contractor shall ensure a smooth, complete and structured handover of all activities, deliverables, information, assets and responsibilities to EU-OSHA or to a third party designated by EU-OSHA. The handover shall include, as a minimum:

- **Documentation transfer:** The contractor shall provide complete, accurate and up-to-date technical, functional, operational and administrative documentation, including all information necessary to ensure continuity of service.
- **Knowledge transfer:** The contractor shall organise and deliver knowledge transfer sessions, which may include workshops, training sessions, demonstrations, shadowing sessions and Q&A meetings for EU-OSHA staff or for an incoming contractor.
- **Transfer of assets and deliverables:** The contractor shall hand over all deliverables, source code, scripts, configuration files, workflows, documentation, datasets, reports, credentials, licences, inventories and any other assets created, modified or used in the performance of the contract, subject to the intellectual property and security provisions of the framework contract.
- **Data handover and deletion:** Any data stored, processed or created during the execution of the contract shall be securely transferred in a format agreed with EU-OSHA. After confirmation of successful receipt, the contractor shall delete all remaining copies from its systems, unless otherwise required by law or expressly authorised by EU-OSHA.
- **Transition support:** The contractor shall provide transition support for a period of up to three months, unless otherwise agreed. This support may include clarifications, assistance in issue resolution, support to the incoming contractor and participation in transition meetings.
- **Final handover report:** The contractor shall submit a final handover report describing the handover activities performed, the assets transferred, the documentation provided, the dates of transfer, remaining risks or open issues, and confirmation of receipt by EU-OSHA or by the designated third party.

Service Level Agreement (SLA)

A Service Level Agreement specific to each lot shall be annexed to the framework contract and shall form an integral part of the contractor's contractual obligations. The SLA shall define the performance metrics, response times, and quality standards that the contractor is required to meet, ensuring consistent and high-quality service delivery. Draft SLAs are provided in the annexes.

Contractor's team

Under no circumstances collaboration with the contracting authority may create employment relations between the contracting authority and the contractor's team members.

The contractor shall provide all resources required for the successful provision of the services. The contractor shall organise, supervise and manage its team in a professional manner and shall ensure that services are delivered on time, within scope and at the required quality level.

The contractor shall not replace key personnel identified in the tender without informing EU-OSHA in advance. EU-OSHA reserves the right to reject replacement profiles that do not demonstrate equivalent or higher qualifications, experience and suitability.

Any replacement of personnel shall not negatively affect service continuity, quality, security or compliance with the SLA.

In the event of a judgment or ruling establishing that an illegal transfer of workers has occurred, the contractor shall bear all judicial, legal and financial consequences thereof where the claim is attributable, wholly or in part, to the contractor's failure to fulfil its responsibilities as employer, including its obligations relating to the direction, supervision, organisation and management of its personnel. This shall be without prejudice to the application of any penalties and compensation provided for in these specifications for breach of the contractor's contractual obligations.

Such penalties shall be independent of the contractor's obligation to compensate EU-OSHA for any damages it may have caused to EU-OSHA or to third parties, including salary payments, social security contributions, dismissal costs or any other costs that EU-OSHA may be required to bear if it is found liable for an illegal transfer of workers.

Account manager

For each lot, the contractor shall appoint an Account Manager who shall act as the main point of contact for all contractual, administrative and commercial matters related to the framework contract.

The Account Manager shall be responsible for ensuring timely and effective responses to EU-OSHA's communications, including requests for quotation, administrative queries, planning requests, meetings, service reviews and contractual follow-up.

The Account Manager shall have appropriate experience and authority to coordinate the contractor's internal resources and to ensure effective contract management. The Account Manager may also fulfil the role of Project Manager or Service Manager, if this does not affect negatively the quality or continuity of the services.

Project manager

For each Lot the contractor shall appoint a Project Manager or Service Manager responsible for the day-to-day coordination, planning, execution, monitoring and quality control of the services.

The Project Manager or Service Manager shall ensure that:

- tasks are properly planned, assigned and monitored;
- deliverables are submitted on time and at the required quality level;
- risks, issues and dependencies are identified and escalated;
- reporting is accurate and timely;
- SLA obligations are fulfilled;
- communication with EU-OSHA and other contractors is effective.

1.4.5. Detailed characteristics of the purchase for Lot 1

The services covered by Lot 1 concern the provision of Project Management Support services for ICT, web, digital and business application projects managed by EU-OSHA. They are part of the minimum requirements for Lot 1.

The contractor shall support EU-OSHA throughout the project lifecycle, from project initiation and planning to execution, monitoring, delivery, closure and lessons learned. The services shall be provided in close cooperation with the ICT Manager, project owners, business stakeholders, technical teams and, where relevant, other contractors involved in the implementation and maintenance of EU-OSHA's ICT services.

The contractor shall provide flexible, structured and result-oriented project management support, ensuring that projects are delivered in a controlled, transparent and efficient manner.

The contractor may be requested to support one or several projects or workstreams in parallel, depending on the EU-OSHA's needs and priorities.

Project initiation and planning

- supporting the preparation of project initiation requests;
- contributing to business cases and project charters;
- defining project scope, objectives, assumptions and constraints;
- preparing project plans and work breakdown structures;
- identifying milestones, dependencies and deliverables;
- estimating and following up workload, resources and planning.

Knowledge management and documentation

- preparing and maintaining project documentation;
- organising project information in EU-OSHA's knowledge repositories;
- supporting handover and knowledge transfer activities;
- contributing to project closure reports and lessons learned documentation.

Functional support

- supporting the functional analysis and requirements gathering;
- ensuring an understanding of the business functions and processes needed, and documenting these processes;
- supporting the collection, extraction, transformation and load of data.

Project coordination

- coordinating internal and external stakeholders;
- following up tasks assigned to project teams and contractors;
- organising and facilitating project meetings;
- preparing agendas, minutes, action lists and decision logs;
- monitoring dependencies between projects, services and contractors;
- supporting the resolution or escalation of blocking points.

Monitoring and reporting

- monitoring project progress against agreed scope, planning and budget;
- preparing regular project status reports;
- preparing dashboards and management summaries;
- tracking risks, issues, actions, decisions and changes;
- supporting reporting to the ICT Manager and relevant governance bodies;
- consolidating information from different teams, contractors and tools.

Testing & Quality assurance

- supporting the definition and follow-up of quality requirements;
- verifying the completeness and consistency of project deliverables;
- performing the first level testing;
- supporting acceptance and validation processes;
- following up testing activities, where applicable;
- contributing to lessons learned and continuous improvement activities.

Risk, issue and change management

- identifying, analysing and following up project risks;
- preparing and maintaining risk and issue registers;
- proposing mitigation or contingency actions;
- following up change requests and assessing their impact on scope, planning, cost and quality;
- supporting prioritisation and decision-making.

Functional induction

- providing functional inductions about the usage of EU-OSHA websites and applications;
- preparing supporting documents.

Domain of expertise

- ICT project management;
- Project Management Office activities;
- PM² / Open PM²;
- Agile, Scrum or equivalent iterative methods;
- multi-contractor coordination;
- portfolio and project reporting;
- risk, issue, change and decision management;
- workload and budget monitoring;
- quality assurance;
- ICT governance,
- web technologies.

1.4.6. Detailed characteristics of the purchase for Lot 2

The services covered by Lot 2 concern the development, maintenance, support and technical coordination of the OiRA platform and related Plone-based components managed by EU-OSHA. They are part of the minimum requirements for Lot 2.

The contractor shall ensure that the platform remains secure, stable, performant, maintainable and aligned with the evolving needs of EU-OSHA, national OiRA partners and end-users. The services shall be provided in close cooperation with EU-OSHA's internal team, with the hosting contractor and, where required, other contractors involved in EU-OSHA ICT activities.

The services are structured around four main areas: development, maintenance, support and coordination.

Maintenance of existing applications

The contractor shall ensure the stability, security, maintainability and continuity of the OiRA platform through corrective, preventive, adaptive and evolutive maintenance activities. The services may include the following:

- **corrective maintenance**, including identification, analysis and resolution of defects, bugs, errors and incidents;
- **preventive maintenance**, including regular checks, technical reviews and dependency assessments;

- **adaptive maintenance**, including adaptation to changes in Plone, Python, Zope, operating environments, dependencies, libraries, APIs or related components;
- **evolutionary maintenance**, including enhancements based on EU-OSHA priorities, partner needs, user feedback, legislative developments or technological evolution;
- **security maintenance**, including application of security hotfixes, dependency updates and vulnerability remediation;
- **performance optimisation**, including analysis and improvement of application performance, response times, workflows, data queries and integrations.

All maintenance activities shall be performed in accordance with the Service Level Agreement applicable to the lot.

Where infrastructure-level actions are required, the contractor shall coordinate with the hosting contractor.

Development of new Applications and Features

The contractor shall be responsible for the full lifecycle development of new functionalities and technical evolutions of the OiRA platform, in accordance with EU-OSHA's requirements, architectural principles and quality assurance procedures. The services may include:

- **requirements analysis and technical assessment**, including analysis of EU-OSHA requests and requests originating from national OiRA partners;
- **technical design and specification**, including solution architecture, technical design and technical recommendations;
- **user experience and usability design**, applying user-centric design principles to ensure consistency with the existing OiRA user experience;
- **coding and integration** of components, Plone add-ons, Python packages and related application logic, including Euphorie core logic and OiRA-specific customisations;
- **frontend and accessibility adaptations**, ensuring compliance with applicable accessibility requirements, including WCAG 2.2 or any other accessibility standard required by EU-OSHA;
- **SEO and technical optimisation**, where relevant;
- **DevSecOps and deployment support**, including version control, automated builds, automated testing, deployment support, code quality checks and security-related controls, where applicable.

Testing and integration

The contractor shall define and perform appropriate testing activities for maintenance, development and evolution tasks.

Testing activities may include, where applicable:

- unit testing;
- system testing;
- integration testing;
- user acceptance testing support;
- regression testing;
- performance testing;
- security testing;
- accessibility testing;
- usability testing.

The contractor shall document test plans, test cases, test results, defects identified, corrective actions and final validation results. Testing activities shall be proportionate to the size, complexity, risk and criticality of the change or solution concerned.

Support, Helpdesk and Induction

Given the decentralised nature of the OiRA project and the involvement of national partners, the contractor shall provide technical support and knowledge transfer services related to the use, administration and evolution of the OiRA platform. The services may include:

- **helpdesk for OiRA partners**, including technical support to the official national OiRA partners, currently 18 partners, and, where exceptionally required, to EU-level partners or partner subcontractors. This support shall mainly concern the administrative interface of the OiRA platform, including the administration portal, and related backend functionalities.
- **support to EU-OSHA internal users** involved in the management, configuration, supervision and evolution of OiRA tools.
- **occasional second-level support for end-users**, mainly related to login issues or specific feature behaviour;
- **documentation and knowledge transfer**, including technical manuals, user documentation and developer documentation;
- **training and induction sessions** for the EU-OSHA OiRA team, national coordinators and, where relevant, other tool developers;
- **video tutorials** for OiRA tool developers explaining how specific features work and how they are enabled or configured in the backend and for OiRA end-users showing how to use the software/tools.

Domain of expertise

- Plone;
- Python;
- Zope;
- ZODB;
- Euphorie or equivalent application logic;
- open-source CMS maintenance;
- dependency management;
- application security;
- automated testing;
- CI/CD or DevSecOps;
- web accessibility;
- SEO;
- web statistics;
- usability;
- application support;
- technical documentation;
- solution architecture.

1.4.7. Detailed characteristics of the purchase for Lot 3

The services covered by Lot 3 concern the development, maintenance, support, modernisation and technical evolution of EU-OSHA's Microsoft-based applications, services and related platforms. They are part of the minimum requirements for Lot 3.

The contractor shall ensure that existing Microsoft applications remain secure, stable, performant, maintainable and aligned with EU-OSHA's operational needs. The contractor may also be requested to design, develop, test, deploy and document new Microsoft-based solutions, including low-code or no-code applications, workflow automation, reporting solutions and business process applications.

The services shall be provided in close cooperation with EU-OSHA's ICT team, business owners, project stakeholders, the Project Management Support contractor and, where relevant, other contractors involved in EU-OSHA ICT activities.

Maintenance of existing applications

The contractor shall provide maintenance services for Microsoft-based applications, platforms and related components. These services may include:

- **corrective maintenance**, including identification, analysis and resolution of defects, bugs, errors and incidents;
- **preventive maintenance**, including regular checks, technical reviews and dependency assessments;
- **adaptive maintenance**, including adaptation to changes in Microsoft solutions, operating environments, dependencies;
- **evolutionary maintenance**, including enhancements based on EU-OSHA priorities, partner needs, user feedback, legislative developments or technological evolution;
- **security maintenance**, including application of security hotfixes, dependency updates and vulnerability remediation;
- **performance optimisation**, including analysis and improvement of application performance, response times, workflows, data queries and integrations.

All maintenance activities shall be performed in accordance with the Service Level Agreement applicable to the lot.

Development of new Applications and Features

The contractor shall be responsible for the full lifecycle development of new Microsoft-based services, applications or components, in accordance with EU-OSHA's requirements, architectural principles and quality assurance procedures. The services may include:

- **requirements analysis and technical assessment**, including analysis of EU-OSHA requests, business analysis and requirements specification;
- **technical design and specification**, including solution architecture, technical design and technical recommendations;
- **user experience and usability support**, applying user-centric design principles to ensure better user experience;
- **coding and integration** of components;
- **DevSecOps and deployment support**, including version control, automated builds, automated testing, deployment support, code quality checks and security-related controls, where applicable.

Such developments may include, but are not limited to:

- low-code or no-code applications based on Microsoft Power Platform;
- custom business applications developed using Microsoft Power Apps;
- workflow automation using Microsoft Power Automate or equivalent Microsoft technologies;
- business process management applications;
- reporting, analytics and dashboard solutions using Power BI;
- SharePoint-based applications, intranet enhancements or content management improvements;
- Dynamics 365 / CRM customisations and integrations;
- Microsoft Teams integrations or collaboration tools;
- SQL-based reporting, data processing or integration components;
- integrations with Microsoft Graph or other Microsoft APIs;
- Azure-based components, where applicable;
- secure portals or collaboration spaces for internal or external stakeholders.

New solutions shall be designed to be secure, maintainable, scalable where relevant, user-friendly, accessible and aligned with EU-OSHA's operational needs, architectural principles and security requirements.

Testing and integration

The contractor shall define and perform appropriate testing activities for Microsoft-based maintenance, development and evolution tasks.

Testing activities may include, where applicable:

- unit testing;
- system testing;
- integration testing;
- user acceptance testing support;
- regression testing;
- performance testing;
- security testing;
- accessibility testing;
- testing of integrations with Microsoft and third-party systems.

The contractor shall document test plans, test cases, test results, defects identified, corrective actions and final validation results. Testing activities shall be proportionate to the size, complexity, risk and criticality of the change or solution concerned.

Support

The management and administration of Microsoft platforms remain under the responsibility of EU-OSHA ICT staff. However, the contractor shall provide specialised technical support and expert guidance where required. Support services may include:

- troubleshooting and issue resolution;
- analysis of incidents, errors and abnormal behaviours;
- configuration support;
- customisation support;
- advice on Microsoft best practices;
- support for security configuration and access management;
- review of permissions, roles and governance settings;
- recommendations on collaboration, data management and productivity;
- support for updates and enhancements;
- support for platform migrations or upgrades;
- support for integration issues;
- assistance with Microsoft cloud services, where applicable.

The contractor shall provide clear and actionable recommendations and shall document all relevant analysis, decisions and implemented changes.

Domain of expertise

- Microsoft 365;
- SharePoint Online and/or SharePoint Server;
- Dynamics 365 / CRM;
- Microsoft Power Platform;
- Power Apps;
- Power Automate;
- Power BI;
- Microsoft SQL / Azure SQL;
- Microsoft Azure;
- Microsoft Entra ID / Active Directory;
- Microsoft Graph;
- Microsoft security;

- CI/CD or DevSecOps.

1.4.8. Deliverables

The contractor shall provide the deliverables required for the proper execution, monitoring, acceptance and documentation of the services. Deliverables shall be adapted to the nature of each lot and to the specific requests issued by EU-OSHA. All deliverables shall be provided in English unless otherwise requested by EU-OSHA.

Common deliverables

Depending on the lot and the specific services requested, deliverables may include:

- service or project reports;
- status reports and dashboards;
- meeting agendas and minutes;
- risk, issue, action and decision logs;
- functional specifications;
- technical specifications;
- implementation plans;
- source code, configuration files, scripts or workflows;
- test plans and test reports;
- release notes;
- deployment packages and deployment instructions;
- user documentation;
- technical documentation;
- training or induction material;
- SLA compliance reports;
- handover and knowledge transfer documentation;
- final reports and lessons learned documentation.

Lot 1 specific deliverables

For Lot 1, deliverables may include:

- project initiation documentation;
- business cases and project charters;
- project plans and work breakdown structures;
- project status reports;
- dashboards and management summaries;
- risk and issue registers;
- action lists and decision logs;
- change request follow-up;
- workload and budget follow-up reports;
- project closure reports;
- lessons learned reports.

Lot 2 specific deliverables

For Lot 2, deliverables may include:

- quarterly service reports covering, where applicable, tickets resolved, system availability, incidents, changes, releases and security updates;
- confirmation of Plone security hotfixes and Python dependency updates applied;
- technical specifications for new OIRA features or small developments;
- functional and technical design documents;
- source code committed to EU-OSHA's Git repositories;

- updated technical, user and developer documentation;
- test reports for new features, fixes or releases;
- release notes and deployment instructions;
- bug fixes and issue resolutions;
- training and induction material;
- screencasts or video tutorials explaining OiRA features and backend configuration;
- usability testing exercises and follow up actions for software improvements.

Where required by EU-OSHA, video tutorials may be adapted from standard English versions to national tools, specific features or languages, including through AI-supported tools, subject to EU-OSHA's prior approval and applicable data protection and intellectual property requirements.

Lot 3 specific deliverables

For Lot 3, deliverables may include:

- bug fixes and issue resolutions;
- updated or enhanced Microsoft applications;
- functional and technical specifications;
- configuration and customisation documentation;
- source code, scripts, workflows, connectors or Power Platform components;
- test plans and test reports;
- release and deployment packages;
- user manuals and administration guides;
- training and induction material;
- SLA compliance reports;
- business analysis and requirements specification documents;
- solution architecture and technical design documents;
- architecture review reports;
- security assessment reports and recommendations;
- configuration review reports;
- release plans and release notes;
- deployment and rollback plans;
- post-deployment verification reports;
- progress reports and risk assessments;
- interim and final reports;
- training material, user induction material and knowledge transfer documentation;
- recommendations for continuous improvement.

1.5. Place of performance: where will the contract be performed?

The services shall be mainly performed remotely from the contractor's premises.

EU-OSHA may request the on-site presence of key members of the contractor's team at EU-OSHA's premises in Bilbao, Spain. This presence is estimated at three to five days per year for the core team, depending on operational needs, including but not limited to kick-off meetings, annual meetings, workshops, project reviews, training sessions provided by the contractor, or knowledge transfer activities. For Lot 2, the annual visit could also be organised in another place in the EU.

These estimates are indicative only and do not constitute a commitment by the contracting authority to order any minimum quantity of on-site services.

Unless otherwise specified in the contract or in a specific contract, all costs related to travel, accommodation, subsistence allowances and personnel time shall be borne by the contractor and deemed to be included in the financial offer.

1.6. Nature of the contract: how will the contract be implemented?

The procedure will result in the conclusion of a single framework contract for each lot.

A framework contract (FWC) establishes a mechanism for future repetitive purchases by the contracting authority to be awarded in the form of specific contracts². The signature of a framework contract does not impose an obligation on the contracting authority to conclude specific contracts with a framework contractor.

The single framework contract will be concluded with one contractor. Specific contracts shall be awarded on the basis of the terms laid down in the framework contract, refined or, in duly justified circumstances, supplemented to reflect the particular circumstances of the specific contract. The details are set out in the draft contract.

Tenderers need to take full account of the full set of procurement documents, including the provisions of the draft contract as the latter will define and govern the contractual relationships to be established between the contracting authority and the successful tenderers. Special attention is to be paid to the provisions specifying the rights and obligations of the contractor, in particular those on payments, performance of the contract, confidentiality, and checks and audits.

👉 Please be aware that if a tenderer to whom the contract is awarded (any of the group members in case of a joint tender) has established debt(s) owed to the Union, the European Atomic Energy Community or an executive agency when the latter implements the Union budget, such debt(s) may be offset, in line with Articles 101(1) and 102 of the [Financial Regulation](#)³ and the conditions set out in the draft contract, against any payment due under the contract. The contracting authority will verify the existence of overdue debts of the successful tenderers (any of the group members in case of a joint tender), and, if any such debt is found, will inform the tenderer (the group leader in case of a joint tender who will then have the obligation to inform all other group members before signing the contract) that the debt(s) may be offset against any payment due under the contract.

1.7. Volume and value of the contract: how much do we plan to buy?

An indicative estimate of the volumes to be ordered over the whole duration of the framework contracts is given in the financial model in **Annex 6**. These volumes are estimates only and there is no commitment as to the exact quantities to be ordered. The actual volumes will depend on the quantities, which the contracting authority will order through specific contracts. In any case, the *framework contract ceiling*, i.e. the maximum amount to be spent under the framework contract for each lot, shall not be exceeded.

The *framework contract ceiling* for each lot is indicated in Section 5.1.5 of the contract notice as follows:

Lot number	Lot title	Yearly estimated amount	Total estimated amount
Lot 1	Project Management Support (PMS)	EUR 650,000	Up to EUR 2,600,000
Lot 2	Plone Maintenance	EUR 250,000	Up to EUR 1,250,000

² Any reference to specific contracts applies also to order forms (a simplified form of specific contract).

³ Regulation (EU, Euratom) 2024/2509 of the European Parliament and of the Council of 23 September 2024 on the financial rules applicable to the general budget of the Union (recast), OJ L, 2024/2509, 26.9.2024, ELI: <http://data.europa.eu/eli/reg/2024/2509/oj>.

Lot 3	Microsoft Maintenance and Developments	EUR 200,000	Up to EUR 800,000
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Offers (following the financial model in **Annex 6**) which exceed the above maximum total amount will be rejected as unacceptable on the basis of point 12.3.a) of the Annex I to the Financial Regulation.

Within three years following the signature of the framework contracts resulting from the current call for tenders, the contracting authority may use the negotiated procedure under point 11.1.e of Annex 1 to the Financial Regulation to procure new services from the contractor up to a maximum of 50 % of the initial *framework contract ceiling*. These services would consist in the repetition of similar services entrusted to the contractor and would be awarded under the same conditions of these tender specifications:

- The minimum requirements and technical specifications of the anticipated negotiated procedure will be same as for the current call for tenders.
- The award will be based on the same exclusion, selection and award criteria as for the current call for tenders.
- The framework contractor will be required to formally agree to maintain unaltered the technical and financial offers submitted under the current call for tenders.

Except for the increase of the framework contract ceiling, the other provisions of the framework contract under the current call for tenders shall remain valid and effective.

1.8. Duration of the contract: how long do we plan to use the contract?

The framework contracts resulting from this call for tenders will be concluded for the duration specified per lot below. The details of the initial contract duration and possible renewals are set out in the draft contract for the respective lot.

Lot number	Lot duration
Lot 1	48 months
Lot 2	60 months
Lot 3	48 months

1.9. Electronic exchange system: can exchanges under the contract be automated?

For all exchanges with the contractors during the implementation of the framework contracts resulting from this call for tenders as well as for future possible subsequent proceedings, including, but not limited to, for the purposes of EDES ([European Union's Early Detection and Exclusion System](#)), the contracting authority may use an electronic exchange system meeting the requirements of Article 151 of the Financial Regulation. At the request of the contracting authority, the use of such a system shall become mandatory for the contractors at no additional cost for the contracting authority. Details on specifications, access, terms and conditions of use will be provided in advance.

1.10. Security

When performing tasks for the contracting authority in execution of the contracts, the contractors and their personnel shall comply with EU-OSHA's applicable security requirements, ICT policies, cybersecurity policies, data protection rules and any additional security instructions issued by EU-OSHA.

The contractors shall ensure, as a minimum, that their activities take into account:

- confidentiality, integrity and availability of information;
- protection of personal data;
- access control based on the principle of least privilege;
- secure authentication, including multi-factor authentication where technically possible;
- secure configuration of systems and devices;
- secure coding practices, where software development is involved;
- vulnerability management;
- malware protection;
- traceability and auditability of actions;
- timely reporting of security incidents, vulnerabilities and risks;
- cooperation with EU-OSHA in security investigations.

For EU-OSHA, the applicable security requirements include:

- General requirements in accordance with:
 - [Commission Decision \(EU, Euratom\) 2017/46](#) of 10 January 2017 on the security of communication and information systems in the European Commission, its subsequent versions, its implementing rules (as adapted from time to time) and the corresponding security standards, guidelines and notices;
 - [Commission Decision \(EU, Euratom\) 2015/443](#) of 13 March 2015 on Security in the Commission, as well as all its subsequent versions.
- Operational requirements:
 - The contracting authority reserves the right to require any person involved in the provision of the services under a given project to attend security briefings given by the contracting authority, and/or to sign a security statement.
 - The contractors' personnel working at EU-OSHA's premises must read, understand and adhere to EU-OSHA's ICT Policy, Cybersecurity Policy and other similar policies as instructed.
 - The contractors must notify EU-OSHA system owners when accounts are no longer required, users are terminated or transferred, system usage or need-to-know changes for an individual.
 - The contractors must ensure that all account usernames and initial authentication credentials are transmitted to users in a secure manner.
 - The contractors must provide and keep records of security awareness training to their personnel, covering fundamental and role-based security issues.
 - The contractors must have a documented incident response procedure. The contractors must report any relevant security incidents to the EU-OSHA Cybersecurity Local Officer (lco@osha.europa.eu) without undue delay (within 48 hours), provide all relevant information and cooperate fully with any security investigations.
 - The contractor shall enforce MFA (Multifactor Authentication) wherever possible when accessing EU-OSHA's resources/systems.
 - A secure baseline configuration must be established for all relevant end devices and network devices. No unsupported OS/software versions shall be used by contractors' personnel when performing tasks for EU-OSHA.

- Vulnerability scanning must be performed regularly on the end devices and network equipment used for connecting to EU-OSHA's infrastructure and a process must be in place to remediate any vulnerabilities identified.
- The end devices and network environment must be protected from malware, including protection at the network perimeter. Anti-malware software must be centrally managed and regularly updated. End users must not disable or change the malware protection on IT equipment.
- The contractors must have intrusion detection and prevention mechanisms in place for their networks and for the end devices used to connect to EU-OSHA, with central management and alerting. The service must be regularly updated. The contractors must monitor relevant security alerts for their environment.

Should the contractors, during the performance of the tasks, that are the subject of the contracts, need remote access to any communication and information system of EU-OSHA or to data sets processed therein, one of the following two approaches shall be observed:

- 1) Contractors' personnel are granted remote access to any EU-OSHA's communication and information systems or to data sets processed therein, without being provided with EU-OSHA IT equipment.

In this case the contractors shall obtain prior authorisation, which shall be granted following the submission and approval of a formal request for network access service ("Remote Access for Companies"), and its approval.

The formal request is initiated by the contractors and will be evaluated on the basis of a risk assessment focusing on the nature and sensitivity of the tasks to be performed remotely and the security requirements of each communication and information system accessed.

During the authorisation process the contractors may be asked to describe relevant organisational, physical, logical and network security measures to provide reasonable assurance that the risks are adequately and systematically covered. The authorisation process may impose additional security requirements as a prerequisite for approval, to protect EU-OSHA's communication and information systems and networks from the risks of unauthorised access or other security breaches. No remote access shall be granted in this context unless an approved Interconnection Security Agreement is in place.

- 2) Contractors' personnel use EU-OSHA IT equipment (normally a laptop PC) and connect to the EU-OSHA's internal network via the remote access service for EU-OSHA staff.

In this case, contractors are required to put in place minimum security measures to mitigate risks to the security of EU-OSHA information during the fulfilment of the contracted services. These measures will focus mainly on the confidentiality and integrity of EU-OSHA's equipment and information.

When the contractors undertake to follow these controls in the contract, access will be permitted, and an Interconnection Security Agreement will be approved.

These rules apply to contractors working either on the contractor's premises or in their own offices, if permitted by the specific contract. This baseline does not cover contractors accessing non-EU-OSHA systems, such as the contractors' development environments.

1.11. Other provisions

1.11.1. Fraud prevention and detection

The contractor must assist the contracting authority in its efforts on fraud prevention and detection.

The contractor undertakes to impose the fraud prevention obligations upon its subcontractors and personnel in the relevant contracts signed with them. Upon request, the contractor must provide evidence to the contracting authority that those obligations have been included in the relevant agreements with its subcontractors and personnel.

1.11.2. Environmental considerations

Environmental considerations shall be considered by the contractor throughout the complete life cycle of providing products or services in the implementation of the contract.

1.11.3. Equal opportunities

The contractor shall observe a policy on the promotion of equality and diversity in the implementation of the contract, by applying the principles of non-discrimination and equality set out in the EU Treaties in full and in their entirety.

In the implementation of the contract, the contractor shall establish, maintain and promote an open and inclusive working environment which respects human dignity and the principles of equal opportunities, especially through the removal of all obstacles to recruitment and all potential discrimination based on sex, race, colour, ethnic or social origin, genetic features, language, religion or belief, political or any other opinion, membership of a national minority, property, birth, disability, age or sexual orientation.

2. GENERAL INFORMATION ON TENDERING

2.1. Legal basis: what are the rules?

This call for tenders is governed by the provisions of the Financial Regulation.

The contracting authority has chosen to award the contracts resulting from this call for tenders through an open procedure pursuant to Article 167(1) (a) of the Financial Regulation. In an open procedure any interested economic operator (any natural or legal person who offers to supply products, provide services or execute works) may submit a tender.

2.2. Entities subject to restrictive measures and rules on access to procurement: who may submit a tender?

Tenderers must ensure that no involved entities (see Section 2.4) nor any subcontractors, including those which do not need to be identified in the tender (see Section 2.4.2), are subject to [EU restrictive measures](#) adopted under Article 29 of the Treaty on the European Union (TEU) or Article 215 of the Treaty on the Functioning of the EU (TFEU)⁴, consisting of a prohibition to make available or transfer funds or economic resources or to provide financing or financial assistance to them directly or indirectly, or of an asset freeze. The prohibition applies throughout the whole performance of the contract.

Participation in this call for tenders is open on equal terms to all natural and legal persons coming within the scope of the [Treaties](#), as well as to international organisations.

It is also open to all natural and legal persons established in a third country provided that it has a special agreement with the European Union in the field of public procurement on the conditions laid down in that agreement.

The Agreement on Government Procurement⁵ concluded within the World Trade Organisation does not apply. Therefore, the participation to this call for tenders is not open to natural and legal persons established in the countries outside of the European Economic Area that have ratified this Agreement.

The rules on access to procurement apply also to subcontractors and entities on whose capacity tenderers rely to fulfil the technical and professional capacity selection criteria, i.e. only economic operators with access to procurement may be subcontractors or entities on whose technical and professional capacity tenderers rely.

To enable the contracting authority to verify the access, each tenderer must indicate its country of establishment (in case of a joint tender – the country of establishment of each group member) and must present the supporting evidence normally acceptable under the law of that country. The same document(s) could be used to prove the country/-ies of establishment and the delegation(s) of the authorisation to sign, as described in Section 4.3.

2.3. Registration in the Participant Register: why register?

Any economic operator willing to participate in this call for tenders must be registered in the [Participant Register](#) - an online register of organisations and natural persons (participants) participating in calls for tenders or proposals of the European Commission and other Eu institutions/bodies.

⁴ Please note that the EU Official Journal contains the official list and, in case of conflict, its content prevails over that of the [EU Sanctions Map](#).

⁵ https://www.wto.org/english/tratop_e/gproc_e/gp_gpa_e.htm.

On registering each participant obtains a Participant Identification Code (PIC, 9-digit number) which acts as its unique identifier in the Participant Register. A participant needs to register only once – the information provided can be further updated or re-used by the participant in other calls for tenders or calls for proposals of the European Commission and other EU institutions/bodies.

 **Each participant needs to ensure that its SME status in the Participant Register is registered and kept up to date.**

It is the responsibility of the participant to provide a contact person's valid e-mail address and to check it regularly.

2.4. Ways to submit a tender: how can economic operators organise themselves to submit a tender?

Economic operators can submit a tender either as a sole economic operator (sole tenderer) or as a group of economic operators (joint tender)⁶. In either case subcontracting is permitted.

Tenders must be drawn and submitted in complete independence and autonomously from the other tenders. A declaration in this regard by each tenderer (in case of a joint tender, by the group leader) shall be requested (**Annex 2**).

A natural or legal person cannot participate at the same time and for the same lot within the same procedure either as member of two or more groups of economic operators or as a sole tenderer and member of another group of economic operators. In such case, all tenders in which that person has participated, either as sole tenderer or as member of a group of economic operators, will be rejected.

Economic operators linked by a relationship of control or of association (e.g. belonging to the same economic/corporate group) are allowed to submit different and separate tenders, provided that each tenderer is able to demonstrate that its tender was drawn independently and autonomously.

A natural or legal person may act as subcontractor for several tenderers as long as the tenders are drawn and submitted in complete independence and autonomously from each other. However, cross subcontracting among tenderers is forbidden, more precisely an entity "A" may participate as tenderer (either as sole tenderer or as member of a group of economic operators) and as subcontractor to another tenderer "B" for the same lot within the same procurement procedure. However, in this case it is forbidden that tenderer "B" (or any of its participating members in case of a group of economic operators) is at the same time subcontractor for tenderer "A" (or for the group of economic operators in which "A" participates) for the same lot within the same procurement procedure. In this case, both tenders A and B shall be rejected.

In order to fulfil the selection criteria set out in Section 3.2, the tenderer can rely on the capacities of subcontractors (see Section 2.4.2) or other entities that are not subcontractors (see Section 2.4.3).

An **"involved entity"** is any economic operator involved in the tender. This includes the following four categories of economic operators:

- sole tenderer,
- group members (including group leader),
- identified subcontractors (see Section 2.4.2), and

⁶ Each economic operator participating in the joint tender is referred to as "group member".

- other entities (that are not subcontractors) on whose capacity the tenderer relies to fulfil the selection criteria.

The role of each entity involved in a tender must be clearly specified in the eSubmission application: i) sole tenderer, ii) group leader (in case of a joint tender), iii) group member (in case of a joint tender), or iv) subcontractor⁷.

For an entity on whose capacities the tenderer relies to fulfil the selection criteria (that is not a subcontractor), this role is defined in the commitment letter (**Annex 5.2**).

2.4.1. Joint tenders

A joint tender is a situation where a tender is submitted by a group (with or without legal form) of economic operators regardless of the link they have between them in the group. The group as a whole is considered a tenderer⁸.

All group members assume joint and several liability towards the contracting authority for the performance of the contract as a whole.

Group members must appoint from among themselves a group leader (the group leader) as a single point of contact authorised to act on their behalf in connection with the submission of the tender and all relevant questions, clarification requests, notifications, etc., that may be received during the evaluation, award and until the contract signature. All group members (including the group leader) must sign an Agreement/Power of attorney drawn up in the model attached in **Annex 3**.

The joint tender must clearly indicate the role and tasks of each group member, including those of the group leader who will act as the contracting authority's contact point for the contract's administrative or financial aspects and operational management. The group leader will have full authority to bind the group and each of its members during contract execution.

If the joint tender is successful, the contracting authority shall sign the contract with the group leader, authorised by the other members to sign the contract also on their behalf via the Agreement/Power of attorney drawn up in the model attached in **Annex 3**.

Changes in the composition of the group during the procurement procedure (after the deadline for submission of tenders and before contract signature) shall lead to rejection of the tender, with the exception of the following cases:

- case of a merger or takeover of a group member (universal succession), provided that the following cumulative conditions are fulfilled:
 - the new entity is not subject to restrictive measures, has access to procurement (see Section 2.2) and is not in an exclusion situation (see Section 3.1),
 - all the tasks assigned to the former entity are taken over by the new entity member of the group,
 - the group meets the selection criteria (see Section 3.2),
 - the change must not make the tender non-compliant with the procurement documents,
 - the terms of the originally submitted tender are not altered substantially and the evaluation of award criteria of the originally submitted tender are not modified,

⁷ Only identified subcontractors (see Section 2.4.2) must be specified in the eSubmission application.

⁸ References to *tenderer* or *tenderers* in this document shall be understood as covering both sole tenderers and groups of economic operators submitting a joint tender.

- the new entity undertakes to replace the former entity for the implementation of the contract, in case of an award.
- case where a group member is subject to restrictive measures or does not have access to procurement (see Section 2.2) or is in an exclusion situation (see Section 3.1), or is the addressee of a decision prohibiting the award of the contract for having received foreign subsidies distorting the internal market (see Section 3) provided the following cumulative conditions are fulfilled:
 - none of the remaining group members is subject to restrictive measures (see Section 2.2),
 - all the remaining group members have access to procurement (see Section 2.2) or is the addressee of a decision prohibiting the award of the contract for having received foreign subsidies distorting the internal market,
 - the remaining group members meet the selection criteria (see Section 3.2),
 - the change must not make the tender non-compliant with the procurement documents,
 - the terms of the originally submitted tender are not altered substantially and the evaluation of award criteria of the originally submitted tender are not modified,
 - the continuation of the participation of the remaining group members in the procurement procedure does not put the other tenderers in a competitive disadvantage,
 - the remaining group members undertake to implement the contract, in case of an award, without the excluded group member.

The replacement of the group member not having access to procurement or in a situation of exclusion is not allowed.

2.4.2. Subcontracting

Subcontracting is the situation where the contractor enters into legal commitments with other economic operators, which will perform part of the contract on its behalf. The contractor retains full liability towards the contracting authority for performance of the contract as a whole.

The following shall not be considered subcontracting:

- a) Use of workers posted to the contractor by another company owned by the same group and established in a Member State ("intra-group posting" as defined by Article 1, 3, (b) of [Directive 96/71/EC concerning the posting of workers in the framework of the provision of services](#)).
- b) Use of workers hired out to the contractor by a temporary employment undertaking or placement agency established in a Member State ("hiring out of workers" as defined by Article 1, 3, (c) of [Directive 96/71/EC concerning the posting of workers in the framework of the provision of services](#)).
- c) Use of workers temporarily transferred to the contractor from an undertaking established outside the territory of a Member State and that belongs to the same group ("intra-corporate transfer" as defined by Article 3, (b) of [Directive 2014/66/EU on the conditions of entry and residence of third-country nationals in the framework of an intra-corporate transfer](#)).
- d) Use of staff without employment contract ("self-employed persons working for the contractor"), without the tasks of the self-employed persons being particular well-defined parts of the contract.
- e) Use of suppliers and/or transporters by the contractor, in order to perform the contract at the place of performance, unless the economic activities of the suppliers and/or the transporting services are within the subject of this call for tenders (see Section 1.4).
- f) Performance of part of the contract by members of an EEIG (European Economic Interest Grouping), when the EEIG is itself a contractor or a group member.

The persons mentioned in points a), b), c) and d) above will be considered as "personnel" of the contractor as defined in the contract.

All contractual tasks may be subcontracted unless the procurement documents expressly reserve the execution of certain critical tasks to the sole tenderer itself, or in case of a joint tender, to a group member.

By filling in the form available in **Annex 4** (List of identified subcontractors), tenderers are required to give an indication of the proportion of the contract that they intend to subcontract, as well as to identify and describe briefly the envisaged contractual roles/tasks of subcontractors meeting any of these conditions (hereafter referred to as *identified subcontractors*):

- subcontractors on whose capacities the tenderer relies upon to fulfil the selection criteria as described under Section 3.2;
- subcontractors whose intended individual share of the contract, known at the time of submission, is above 10 %.

Any such subcontractor must provide the tenderer with a commitment letter drawn up in the model attached in **Annex 5.1** and signed by its authorised representative.

☞ Each tenderer shall identify such subcontractors and provide the commitment letters with its tender. The information must be true and correct at the time of submitting the tender. Any changes or additions regarding the envisaged subcontractors after the deadline for submission of tenders must be justified to the contracting authority.

The above rules apply also where the economic operators, which will perform part of the contract on behalf of a successful tenderer, belong to the same economic/corporate group as the sole tenderer or a member of the group submitting the joint tender.

Changes concerning subcontractors identified in the tender (withdrawal/replacement of a subcontractor, additional subcontracting) during the procurement procedure (after the submission deadline and before contract signature) require the prior written approval of the contracting authority subject to the following verifications:

- any new subcontractor is not subject to restrictive measures, is not the addressee of a decision prohibiting the award of the contract for having received foreign subsidies distorting the internal market, has access to procurement if the rules on access to procurement apply also to subcontractors (see Section 2.2) and is not in an exclusion situation (see Section 3.1),
- the tenderer still fulfils the selection criteria and the new subcontractor fulfils the selection criteria applicable to it individually, if any;
- the terms of the originally submitted tender are not altered substantially, i.e. all the tasks assigned to the former subcontractor are taken over by another involved entity, the change does not make the tender non-compliant with the tender specifications, and the evaluation of award criteria of the originally submitted tender is not modified.

Subcontracting to subcontractors identified in a tender that was accepted by the contracting authority and resulted in a signed contract, is considered authorised.

2.4.3. Entities (not subcontractors) on whose capacities the tenderer relies to fulfil the selection criteria

In order to fulfil the selection criteria a tenderer may also rely on the capacities of other entities (that are not subcontractors), regardless of the legal nature of the links it has with them. It must in that case prove that it will have at its disposal the resources necessary for the performance of the contract by producing

a commitment letter in the model attached in **Annex 5.2**, signed by the authorised representative of such an entity, and the supporting evidence that those other entities have the respective resources⁹.

☞ The above rules apply also where the economic operators on whose capacities the tenderer relies to fulfil the selection criteria (that are not subcontractors) belong to the same economic/corporate group as the sole tenderer or a member of the group submitting the joint tender.

2.4.4. Rules common to subcontractors and entities (not subcontractors) on whose capacities the tenderer relies to fulfil the selection criteria

If a successful tenderer intends to rely on another entity to meet the minimum levels of economic and financial capacity, the contracting authority may require the entity to sign the contract or, alternatively, to provide a joint and several first-call financial guarantee for the performance of the contract.

With regard to technical and professional selection criteria, a tenderer may only rely on the capacities of other entities only when these entities will perform the works or services for which these particular capacities are required. In such cases,, they will either assume the role of subcontractors or, where the exceptions listed in Section 2.4.2 are applicable, they will assume the role of entities on whose capacities the tenderer relies to fulfil the selection criteria without being subcontractors.

☞ Relying on the capacities of other entities is only necessary when the capacity of the tenderer is not sufficient to fulfil the required minimum levels of capacity. Abstract commitments that other entities will put resources at the disposal of the tenderer will be disregarded.

2.5. Usage of Artificial Intelligence

Tenderers remain fully responsible for the content, accuracy, completeness, consistency and originality of their tenders, including where artificial intelligence tools have been used to assist in the preparation of the tender.

The use of artificial intelligence tools shall not limit, reduce or transfer the tenderer's responsibility. Tenderers shall ensure that any use of such tools:

- does not compromise the confidentiality of the procurement procedure;
- does not result in the disclosure of personal data, confidential information or sensitive information to unauthorised systems or third parties;
- does not infringe intellectual property rights or other rights of third parties;
- does not generate misleading, incorrect, unverified or generic content;
- does not replace the professional analysis and expertise expected from the tenderer.

EU-OSHA reserves the right to request clarifications where the content of a tender appears inconsistent, generic, inaccurate, insufficiently tailored to the requirements or otherwise unclear.

⁹ This does not apply to subcontractors on whose capacity the tenderer relies to fulfil the selection criteria – for these the documentation required for subcontractors must be provided.

3. EVALUATION AND AWARD

The evaluation of the tenders that comply with the submission conditions will consist of the following elements:

- Check if the tenderer has access to procurement (see Section 2.2);
- Verification of administrative compliance (if the tender is drawn up in one of the official EU languages and the required documents signed by duly authorised representative(s) of the tenderer);
- Verification of non-exclusion of tenderers based on the exclusion criteria;
- Selection of tenderers based on selection criteria;
- Evaluation of tenders: compliance with the requirements of the procurement document and based on the award criteria.

The contracting authority will evaluate the abovementioned elements in the order that it considers to be the most appropriate.

If the evaluation of one or more elements demonstrates that there are grounds for rejection, the tender will be rejected and will not be subjected to further full evaluation. The rejected tenderers will be informed of the ground for rejection without being given feedback on the non-assessed content of their tenders. The ranked tenderers will have access to information on the relative advantages of the successful tenderer(s) and its (their) total financial offer amount, if they request so in writing after being informed of the result of the procedure. This will be without the prejudice to further checks and to the provision of supporting documents on exclusion and/or selection criteria if the contract cannot be signed with the presumed winner(s). Only tenderers for whom the verification of all elements did not reveal grounds for rejection can be awarded the contracts resulting from this call for tenders.

The evaluation will be based on the information and evidence contained in the tenders and, if applicable, on additional information and evidence provided at the request of the contracting authority during the procedure. If any of the declarations or information provided proves to be false, the contracting authority may impose administrative sanctions (exclusion or financial penalties) on the entity providing the false declarations/information.

For the purposes of the evaluation related to exclusion and selection criteria the contracting authority may also refer to publicly available information, in particular evidence that it can access on a national database free of charge.

We reserve the right to use artificial intelligence technologies as an assistant tool to support the evaluation process; however, all final selection decisions will be made solely by the human evaluation committee, in accordance with the obligations established by Regulation (EU) 2024/1689 (EU Artificial Intelligence Act¹⁰).

¹⁰ <https://artificialintelligenceact.eu/the-act/>

3.1. Exclusion criteria

The objective of the exclusion criteria is to assess whether the tenderer is in any of the exclusion situations listed in Article 138(1) of the Financial Regulation.

Tenderers found to be in an exclusion situation will be rejected.

As evidence of non-exclusion, each tenderer¹¹ needs to submit with its tender a Declaration on Honour¹² in the model available in **Annex 2**¹³. The declaration must be signed by an authorised representative of the entity providing the declaration. Where the declaration has been signed by hand, the original does not need to be submitted to the contracting authority, but the latter reserves the right to request it from the tenderer at any time during the record-keeping period specified in Section 4.3.

The initial verification of non-exclusion of tenderers will be done on the basis of the submitted declarations and consultation of the [European Union's Early Detection and Exclusion System](#).

Evidence will be requested only from the presumed successful tenderer before the award decision, without prejudice to the possibility for the contracting authority to ask any tenderer at any moment during the procurement procedure¹⁴ to submit an updated declaration or all or part of the supporting documents where this is necessary to ensure the proper conduct of the procedure.

The contracting authority may also request information on natural or legal persons that are members of the administrative, management or supervisory body or that have powers of representation, decision or control, including legal and natural persons within the ownership and control structure and beneficial owners, and appropriate evidence that none of those persons are in one of the exclusion situations referred to in Section A point (1) (c) to (f) of the Declaration on Honour.

All tenderers are **invited to prepare in advance the documentary evidence**, since they may be requested to provide such evidence within a short deadline

👉 If the tenderer does not provide valid documentary evidence within the deadlines set by the contracting authority, the latter reserves the right to reject the tender. In any event, in case a tenderer proposed for the award of the contract fails to comply with the above evidence requirement, its tender will be rejected, unless the tenderer can justify the failure on the grounds of material impossibility to provide such evidence.

Annex 1 specifies which of the involved entities participating in a tender need to provide the Declaration on Honour and, when requested by the contracting authority, the supporting evidence.

Please note that a request for evidence in no way implies that the tenderer has been successful.

¹¹ See in Annex 1 which of the involved entities participating in a tender need to provide the Declaration on Honour.

¹² The European Single Procurement Document (ESPD) may not be used yet in calls for tenders of the contracting authority.

¹³ Unless the same declaration has already been submitted for the purposes of another award procedure of the contracting authority, the situation has not changed, and the time elapsed since the issuing date of the declaration does not exceed one year.

¹⁴ The obligation to provide the supporting evidence will be waived in the following situations:

- if the same documents have already been provided in a previous award procedure of the contracting authority, have been issued no more than one year before the date of their request by the contracting authority and are still valid at that date;
- if such evidence can be accessed by the contracting authority on a national database free of charge, in which case the economic operator shall provide the contracting authority with the internet address of the database and, if needed, the necessary identification data to retrieve the document;
- if there is a material impossibility to provide such evidence.

3.2. Selection criteria

The objective of the selection criteria is to assess whether the tenderer has the legal, regulatory, economic, financial, technical and professional capacity to perform the contract.

The selection criteria for this call for tenders, including the minimum levels of capacity, the basis for assessment and the evidence required, are specified in the following subsections.

Tenders submitted by tenderers not meeting the minimum levels of capacity will be rejected.

When submitting its tender each tenderer shall declare on honour that it fulfils the selection criteria for the lot(s) for which it applies in this call for tenders. The model Declaration on Honour available in **Annex 2** shall be used.

The initial assessment of whether a tenderer fulfils the selection criteria will be done on the basis of the submitted declaration(s).

The subsections below specify which selection criteria evidence must be provided with the tender or may be requested later, at any time during the procurement procedure, within a deadline given by the contracting authority¹⁵.

The evidence must be provided in accordance with the applicable basis for assessment of each criterion: in case of a consolidated assessment – only by the involved entities who contribute to the fulfilment of the criterion, and in case of individual assessment – by each entity to whom the criterion applies individually.

In case not all selection criteria evidence is requested with the tender, **all tenderers are invited to prepare in advance the documentary evidence**, since they may be requested to provide such evidence within a short deadline. In any event, the tenderers proposed by the evaluation committee for the award of the contracts will be requested to provide such evidence.

👉 If the tenderer does not provide valid documentary evidence within the deadlines set by the contracting authority, the contracting authority reserves the right to reject the tender. In any event, in case a tenderer proposed for the award of the contract fails to comply with the above evidence requirement, its tender will be rejected, unless there is a ground for a waiver.

Please note that a request for evidence in no way implies that the tenderer has been successful.

3.2.1. Legal and regulatory capacity

Tenderers can be natural or legal persons. Tenderers are not obliged to take a specific legal form in order to submit their tenders.

Where tenderers submit a tender through an entity, which lacks legal personality (e.g. a branch), the compliance with the exclusion criteria, selection criteria, the rules on access to procurement as well as the absence of restrictive measures shall be assessed at the level of the tenderers.

¹⁵ The obligation to provide the supporting evidence will be waived in the following situations:

- if the same documents have already been provided in a previous award procedure of the contracting authority and are still up to date;
- if such evidence can be accessed by the contracting authority on a national database free of charge, in which case the economic operator shall provide the contracting authority with the internet address of the database and, if needed, the necessary identification data to retrieve the document.

Tenderers must prove specific legal capacity to perform the contract and the regulatory capacity to pursue the professional activity necessary to carry out the tasks subject to this call for tenders.

The legal and regulatory capacity shall be proven by the evidence listed below:

- Proof of enrolment in a relevant trade or professional register proving that the tenderer can carry out economic activities;
- If applicable:
 - Proof that the tenderer is authorised to perform the contract in its country of establishment.

👉 The indicated evidence **does not need to be provided with the tender** but only upon request by the contracting authority at any time during the procedure and would apply to each member of the group in case of a joint tender. **Please note that a request for evidence in no way implies that the tenderer has been successful.**

3.2.2. Economic and financial capacity

Tenderers must comply with the following selection criteria in order to prove that they have the necessary economic and financial capacity to perform the contract:

Criterion F1	
Minimum level of capacity	Average yearly turnover of the last three financial years of at least: • EUR 1,000,000 for Lot 1 • EUR 300,000 for Lot 2 • EUR 400,000 for Lot 3
Basis for assessment	This criterion applies to the tenderer as a whole, i.e. a consolidated assessment of the combined capacities of all <i>involved entities</i> will be carried out.
Evidence	Copy of the profit and loss accounts and balance sheets for the last three years for which accounts have been closed from each concerned involved entity, or, failing that, appropriate statements from banks. The most recent year must have been closed within the last 18 months.

Criterion F2	
Minimum level of capacity	Specific yearly turnover (related to services like those described in this call for tenders) of the last three financial years (a statement concerning other types of services will not be taken into consideration) above: • EUR 500,000 for Lot 1 • EUR 250,000 for Lot 2 • EUR 200,000 for Lot 3
Basis for assessment	This criterion applies to the tenderer as a whole, i.e. a consolidated assessment of the combined capacities of all <i>involved entities</i> will be carried out.
Evidence	Financial statement of specific turnover.

Criterion F3	
Minimum level of capacity	Certification of absence of payments problems or debts with bank or third parties
Basis for assessment	This criterion applies to the tenderer as a whole, i.e. a consolidated assessment of the combined capacities of all <i>involved entities</i> will be carried out.
Evidence	Declaration of a financial entity.

👉 The evidence of economic and financial capacity **does not need to be provided with the tender** but may be requested by the contracting authority at any time during the procedure

3.2.3. Technical and professional capacity

👉 With regard to technical and professional selection criteria, a tenderer may only rely on the capacities of other entities where the latter will perform the works or services for which these capacities are required. The entity on whose capacity the tenderer relies on will either assume the role of a subcontractor or fall within the exceptions listed in Section 2.4.2.

Tenderers must comply with the following selection criteria to prove that they have the necessary technical and professional capacity to perform the contract:

Criterion T1	
The tenderer must demonstrate relevant experience in the provision of services comparable in nature, scope, size and complexity to the services covered by the lot for which it submits a tender.	
Minimum level of capacity	A minimum of 3 years' experience of projects similar (in scope and complexity) to the services described, completed during the five years preceding the deadline for submission of tenders, for clients in the public and private sector at national/international level through Project/Activity Reference Form (PARFs). Tenderers must provide a minimum of three and a maximum of five PARFs per lot. Minimum value for at least one of the PARFs: • Lot 1: EUR 50,000 per year • Lot 2: EUR 50,000 • Lot 3: EUR 50,000 Other requirements for the Lot 1: • At least one PARF must demonstrate the implementation of recognised or institutional project management methodologies, such as PM², PRINCE2, PMP/PMBOK, or Agile approaches. Other requirements for the Lot 2: • At least one PARF must demonstrate large-scale content migration (e.g. migration from Plone 4/5 to Plone

Criterion T1	
	6, or from another CMS to Plone, management of large-scale ZODB databases). Other requirements for the Lot 3: - At least 1 PARF must cover business process automation and custom application development using Microsoft Power Apps and Power Automate (or equivalent); - At least one PARF must cover data modeling, analytics, and complex dashboard design using Microsoft Power BI (or equivalent); - At least one PARF must involve the deployment, customization, or maintenance of Microsoft Dynamics 365 (Customer Engagement/CRM) or equivalent enterprise CRM system.
Basis for assessment	This criterion applies to the tenderer as a whole, i.e. the consolidated assessment of combined capacities of all involved entities will be carried out. 2 PARFs should be added for each subcontractor focusing on the subcontracted tasks.
Evidence	- A mapping of all PARFs (Annex 7 (Tab T1A)). - A description and evidence of contracts or projects performed in the past 5 years, similar in scope, size and nature to those described in each lot. To prove this capacity, tenderers are requested to complete a PARF for each contract or project, indicating the precise type of work carried out, the date, the approximate value of the contract and the customer. The PARFs must demonstrate the tenderer's ability to deliver the services that form part of this call for tenders (Annex 7 (Tab T1B))

👉 All of the above-specified evidence of technical and professional capacity **must be provided with the tender**.

👉 Involved entities (see Section 2.4) and all subcontractors, including those which do not need to be identified in the tender (see Section 2.4.2), must not be subject to professional conflicting interests which may negatively affect the contract performance. Where the contracting authority has established such conflicting interests, it may conclude that the tenderer or an involved entity does not possess the required professional capacity to perform the contract to an appropriate quality standard.

The presence of conflicting interests shall be examined during the evaluation phase based on the statements made through the Declarations on Honour and, where applicable, the commitment letters (**Annex 5.1 and Annex 5.2**).

When evaluating the tenders submitted in the present procedure for the award of framework contracts, the contracting authority may consider the risk of professional conflicting interests with reference to the nature and subject of the specific contracts under the framework contracts.

Further details and obligations concerning professional conflicting interests are set out in the draft contract.

3.3. Evaluation of tenders

3.3.1. Compliance with the requirements specified in the procurement documents

By submitting a tender, a tenderer commits to perform the contract in full compliance with the terms and conditions of the procurement documents for this call for tenders. Particular attention is drawn to the minimum requirements specified in Section 1.4 of these specifications and to the fact that tenders must comply with applicable data protection, environmental, social and labour law obligations established by Union law, national legislation, collective agreements or the international environmental, social and labour conventions listed in Annex X to Directive 2014/24/EU and applicable obligations established by Regulation (EU) 2024/1689 (EU Artificial Intelligence Act)¹⁶.

The minimum requirements shall be observed throughout the entire duration of the contract. Compliance with these requirements is mandatory and cannot be subject to any assumptions, limitations, conditions, or reservations on the part of a tenderer.

Tenderers must declare when submitting their tenders in eSubmission whether their tenders comply with the minimum requirements specified in the procurement documents.

 **Tenders that are not compliant with the applicable minimum requirements shall be rejected.**

3.3.2. Award criteria

The objective of the award criteria is to evaluate the tenders with a view to choosing the most economically advantageous tender.

Tenders will be evaluated on the basis of the following award criteria and their weighting:

1. Price – 30%

The price considered for evaluation will be the total price of the tender, covering all the requirements set out in the tender specifications.

100 points will be awarded to the lowest priced tender; other tenders will receive points calculated according to the following equation:

$$\text{Price index} = (\text{lowest price} / \text{price of tender in question}) \times 100$$

2. Quality – 70%

Tenders must score minimum 50% for each criterion and minimum 60% in total.

The quality of the tender will be evaluated based on the following criteria.

¹⁶ <https://artificialintelligenceact.eu/the-act/>

3.3.3. Definition of common criteria to all lots

The following table provides the common description of the award criteria used for all lots. The weighting and minimum points applicable to each criterion are specified in the lot-specific award criteria tables below.

N°	Common criteria
1	Quality, relevance and completeness of the proposed team and CVs The tenderer must demonstrate that it has a qualified and experienced team capable of performing the services covered by the relevant lot. The tenderer should provide: • A mapping of all CVs The CVs of team members who will be responsible for carrying out the projects (maximum of 2 pages per team member is recommended), reflecting their capacity to meet the requirements stated in each lot. One person could play different roles. The CVs should cover at least the following profiles: • One Account Manager who must have: ○ a minimum of 5 years in managing a relationship with a client. ○ a minimum of 5 years of experience in the tasks described in this call for tenders. • One Project Manager who must have: ○ a minimum of 3 years of project management methodology and in managing a relationship with a client. ○ a minimum of 3 years of experience in the tasks described in this call for tenders. • Two Senior Consultants who must have: ○ required knowledge: solid knowledge and experience in its area of expertise. ○ a minimum of 5 years of experience in the tasks described in this call for tenders. • Two Junior Consultants who must have: ○ a good knowledge and experience in the tasks and tools described in this document. ○ a minimum of 1 year of experience in the tasks described in this document. The CVs must show evidence of language skills with a minimum of B2 level in English (written and spoken). In addition, the proposed team shall demonstrate experience and expertise in the domains described in: • 1.4.5 - Detailed characteristics of the purchase for Lot 1 • 1.4.6 - Detailed characteristics of the purchase for Lot 2 • 1.4.7 - Detailed characteristics of the purchase for Lot 3 The tenderer shall provide CVs and a role and experience matrix demonstrating that the proposed team covers all roles required for the lot. Higher marks will be awarded to CVs demonstrating recent and substantial experience in comparable ICT environments and in roles similar to those required under the lot.

2	Coverage, completeness and relevance of the proposed services The tenderer shall demonstrate that its offer covers all services required under the lot for which it submits a tender. Tenderers shall provide a service coverage matrix, indicating for each required service: • where the service is addressed in the technical tender; • how the tenderer intends to deliver the service; • which roles or profiles will be involved; • which tools, methods or processes will be used; • which deliverables, where applicable, will be produced. The evaluation will consider the completeness of the coverage, the clarity and practical relevance of the proposed services, the consistency between the proposed services, methodology, team and deliverables, and the ability of the tenderer to support one or several ICT projects or workstreams in parallel.
3	SLA compliance, monitoring and improvement The tenderer shall explain how it will ensure compliance with the SLA applicable to the lot. The tenderer shall describe the organisation, processes, tools and controls used to ensure the compliance with the SLA. The tenderer shall also explain how SLA deviations will be detected, escalated, corrected and prevented. The tenderer may propose concrete improvements to the draft SLA. Proposed improvements must be measurable, realistic and applicable during contract implementation.
4	Use of Artificial Intelligence for the implementation of the framework contract The tenderer shall describe how it intends to use Artificial Intelligence tools or AI-supported methods during the implementation of the Framework Contract, where relevant to the services covered by the lot. The response shall explain the proposed AI use cases, the expected added value, the limits of the proposed use, and the governance, security and quality controls that will be applied. The tenderer shall address, as a minimum: • the AI-supported activities proposed; • the expected benefits; • the tools, platforms or categories of AI technologies envisaged, where known; • the human validation and quality assurance process; • the measures to prevent inaccurate, biased, misleading or non-compliant outputs; • the measures to ensure confidentiality, data protection, information security and intellectual property compliance. The evaluation will consider the clarity, relevance, feasibility and added value of the proposed AI approach, as well as its compliance with EU-OSHA's security, data protection, confidentiality and quality requirements. The use of AI shall not reduce the contractor's responsibility for the quality, accuracy, security, legality and contractual compliance of the services and deliverables.

5	Scenario For each lot, tenderers shall present a scenario designed to assess their practical understanding of the services required under the relevant lot and their ability to apply their proposed methodology, organisation, tools, technical expertise, governance and quality controls in a realistic EU-OSHA context. The scenarios are described in <u>Appendix 4: Scenarios</u>. For each scenario, tenderers shall provide the following deliverables or sample artefacts as part of their technical tender: • a proposed approach and high-level work plan; • a work-break-down structure with the estimated effort for the different profiles; • a governance model, including roles and responsibilities; • a description of the proposed technical, operational or project management solution; • a summary of the main risks, issues, assumptions and dependencies; • a security, confidentiality, data protection and compliance approach; • a quality assurance, validation and acceptance approach, where applicable; • examples or descriptions of reporting, monitoring and escalation mechanisms; • an outline of documentation, training and knowledge transfer activities. The deliverables shall be realistic, tailored to the relevant scenario and consistent with the tenderer's proposed methodology, team, tools and service delivery model.
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3.3.4. Award criteria for Lot 1

N°	Award criteria	Maximum points	Minimum points
1	Quality, relevance and completeness of the proposed team and CVs (see details in <u>3.3.3- Definition of common criteria</u> to all lots) For this lot, the evaluation will consider the relevance and depth of experience of the proposed profiles in the domains described in <u>1.4.5 - Detailed characteristics of the purchase for Lot 1</u>	20	10
2	Coverage, completeness and relevance of the proposed services (see details in <u>3.3.3- Definition of common criteria</u> to all lots) For this lot, the services are described in Sections: • <u>1.4.4 - Detailed characteristics of the purchase common for all lots</u> • <u>1.4.5 - Detailed characteristics of the purchase for Lot 1</u>	20	10

3	SLA compliance, monitoring and improvement (see details in 3.3.3- Definition of common criteria to all lots) The draft SLA for this lot, can be found in Appendix 5.1 Lot 1 – Service Level Agreement .	10	5
4	Use of Artificial Intelligence for the implementation of the Framework Contract (see details in 3.3.3- Definition of common criteria to all lots)	10	5
5	Scenario 1 - Cybersecurity monitoring of EU-OSHA websites (Lot 1) (see details in 3.3.3- Definition of common criteria to all lots) The scenario is described in Appendix 4: Scenarios .	20	10
6	Project management methodology and practical application The tenderer shall describe how it will apply project management practices aligned with PM ² and, where relevant, Agile or Scrum. The tenderer shall provide concrete examples of artefacts it would use, such as project plan, RACI matrix, risk register, issue log, decision log and status report. The evaluation will consider the practical applicability and clarity of the proposed approach.	10	5
7	Multi-contractor coordination and independence model The tenderer shall explain how it will coordinate with other ICT contractors while maintaining an independent PMS role. The tenderer shall describe escalation mechanisms, communication flows, meeting structures, conflict-of-interest prevention measures and how it will monitor contractors without replacing their technical responsibility.	10	5
Total		100	60

3.3.5. Award criteria for Lot 2

N°	Award criteria	Maximum points	Minimum points
1	Quality, relevance and completeness of the proposed team and CVs (see details in 3.3.3- Definition of common criteria to all lots) For this lot, the <u>evaluation</u> will consider the relevance and depth of experience of the proposed profiles in the domains described in 1.4.6 - Detailed characteristics of the purchase for Lot 2.	20	10
2	Coverage, completeness and relevance of the proposed services (see details in 3.3.3- Definition of common criteria to all lots) For this lot, the services are described in Sections: • 1.4.4 - Detailed characteristics of the purchase common for all lots • 1.4.6 - Detailed characteristics of the purchase for Lot 2	20	10
3	SLA compliance, monitoring and improvement (see details in 3.3.3- Definition of common criteria to all lots) The draft SLA for this lot, can be found in Appendix 5.2 Lot 2 – Service Level Agreement.	10	5
4	Use of Artificial Intelligence for the implementation of the Framework Contract (see details in 3.3.3- Definition of common criteria to all lots)	10	5
5	Scenario 2 - AI-based feature to improve OiRA user experience (Lot 2) (see details in 3.3.3- Definition of common criteria to all lots) The scenario is described in Appendix 4: Scenarios.	20	10

6	Technical approach for Plone, Python, Zope, ZODB, Euphorie and the OiRA platform The tenderer shall describe its technical approach for maintaining and evolving the OiRA platform and related Plone-based components. The response shall cover the Plone/Python/Zope/ZODB stack, Euphorie core logic, OiRA customisations, dependency management, code quality, technical debt, security, performance, testing, CI/CD, deployment support, and monitoring. The evaluation will consider the clarity, completeness, feasibility and relevance of the proposed approach and its ability to ensure that the OiRA platform remains secure, stable, performant, maintainable and fit for purpose.	20	10
Total		100	60

3.3.6. Award criteria for Lot 3

N°	Award criteria	Maximum points	Minimum points
1	Quality, relevance and completeness of the proposed team and CVs (see details in 3.3.3- Definition of common criteria to all lots) For this lot, the <u>evaluation</u> will consider the relevance and depth of experience of the proposed profiles in the domains described in 1.4.7 - Detailed characteristics of the purchase for Lot 3.	20	10
2	Coverage, completeness and relevance of the proposed services (see details in 3.3.3- Definition of common criteria to all lots) For this lot, the services are described in Sections: • 1.4.4 - Detailed characteristics of the purchase common for all lots • 1.4.7 - Detailed characteristics of the purchase for Lot 3	20	10
3	SLA compliance, monitoring and improvement (see details in 3.3.3- Definition of common criteria to all lots) The draft SLA for this lot, can be found in Appendix 5.3 Lot 3 – Service Level Agreement.	10	5
4	Use of Artificial Intelligence for the implementation of the Framework Contract (see details in 3.3.3- Definition of common criteria to all lots)	10	5
5	Scenario 3 - External Stakeholder Portal (Lot 3) (see details in 3.3.3- Definition of common criteria to all lots) The scenario is described in Appendix 4: Scenarios.	20	10
6	Technical approach for SharePoint, Dynamics 365, Power Platform, Microsoft 365 and Azure The tenderer shall describe its technical approach for maintaining, supporting, developing, modernising and continuously improving EU-OSHA's Microsoft-based applications and services. The response shall cover, as a minimum: • SharePoint Online and/or SharePoint Server; • Dynamics 365 / CRM, including Dynamics 365 Marketing where applicable;	20	10

	• Microsoft Power Platform, including Power Apps, Power Automate and Power BI; • Microsoft SQL Server and Azure SQL; • Microsoft Graph and other Microsoft APIs; • Microsoft 365 • Microsoft Azure services. The evaluation will consider the clarity, completeness, feasibility and relevance of the proposed approach, its alignment with EU-OSHA's Microsoft environment and operational needs, and the tenderer's ability to deliver secure, maintainable, scalable and user-oriented Microsoft-based solutions.		
Total		100	60

3.3.7. Award (ranking of tenders)

Tenders for the lots for which the award method is best price-quality ratio shall be ranked according to the best price-quality ratio in accordance with the formula below:

$$\text{Final score (max. 100)} = (\text{price index} \times 0.3) + (\text{technical index} \times 0.7)$$

Should the outcome of the formula lead to two or more tenders with the same result, the tenderer who has been awarded the highest marks for quality will be deemed to be the most economically advantageous tender. This approach will continue to be applied to each of the award criteria in the order they are presented above until a most economically advantageous tender can be determined.

👉 The contracts shall be awarded to the tenders ranked first, which complies with the minimum requirements specified in the procurement documents and is submitted by a tenderer not subject to restrictive measures, having access to procurement, not in an exclusion situation and fulfilling the selection criteria.

👉 Detection of abnormally low tenders

Tenderers must be aware of Point 23 of Annex I to the Financial Regulation on abnormally low tenders and of the possibility for rejection of the tender based on it.

4. FORM AND CONTENT OF THE TENDER

4.1. Form of the tender: how to submit the tender?

Tenders are to be submitted via the eSubmission application according to the instructions laid down in the Invitation letter and the eSubmission Quick Guide available at the links below:

https://wikis.ec.europa.eu/display/FTPPortal/Open+procedures_EN

👉 Make sure you prepare and submit your tender in eSubmission early enough to ensure it is received within the deadline indicated under Section 5.1.12 of the contract notice and/or on Funding &Tenders Portal (F&T Portal)¹⁷.

4.2. Content of the tender: what documents to submit with the tender?

The documents to be submitted with the tender in eSubmission are listed in **Annex 1**.

👉 Tenderers willing to submit tenders for more than one lot need to upload a separate technical and financial tender for each of the lots in which they are interested.

The following requirements apply to the technical and financial tender to be uploaded in eSubmission:

- *Technical tender*

The technical tender for any lot for which the award method is best price-quality ratio must provide all the information needed to assess the compliance with Section 1.4 of these specifications and the award criteria. Tenders deviating from the minimum requirements or not covering all the requirements may be rejected on the basis of non-compliance and not evaluated further.

Tenderers are recommended to limit their technical proposals to approximately 9,000 words and 20 pages, with an additional 4,500 words and 10 pages for the scenario. These limits aim to ensure concise and focused submissions and to support an efficient evaluation process. Tenderers should respect these recommendations where possible and provide information in a clear and proportionate manner. Proposals exceeding these limits will not be rejected solely on this basis.

- *Financial tender*

A complete financial tender, including the breakdown of the price needs to be submitted. For this purpose, the Financial Model in **Annex 6** shall be used.

The financial tender shall be:

- expressed in euros. Tenderers from countries outside the euro zone have to quote their prices in euro. The price quoted may not be revised in line with exchange rate movements. It is for the tenderer to bear the risks or the benefits deriving from any variation.
- quoted free of all duties, taxes and other charges, i.e. also free of VAT.

👉 The European Union Institutions are exempt from such charges in the EU under Articles 3 and 4 of the Protocol on the Privileges and Immunities of the European Union of 8 April 1965 annexed to the Treaty on the Functioning of the European Union. Exemption is granted by the governments of the Member States, either through refunds upon presentation of documentary evidence or by direct exemption.

¹⁷ <https://ec.europa.eu/info/funding-tenders/opportunities/portal/screen/home>

In case of doubt about the applicable VAT system, it is the tenderer's responsibility to contact its national authorities to clarify the way in which the European Union is exempt from VAT.

4.3. Signature policy: how can documents be signed?

Where a document needs to be signed, the signature must be either hand-written or, preferably, a qualified electronic signature (QES) or an advanced electronic signature supported by a qualified certificate (AdES/QC) as defined in [Regulation \(EU\) No 910/2014 on electronic identification and trust services for electronic transactions in the internal market \(the "eIDAS Regulation"\)](#).

Tenderers are strongly encouraged to sign with a QES¹⁸ or, alternatively, with an AdES/QC, all documents requiring a signature and only exceptionally to sign such documents by hand as hand-written signatures lead to an additional administrative burden for both the tenderer and the contracting authority. The originals of any hand-signed documents (other than the contract) do not need to be submitted to the contracting authority but the tenderer must keep them for a period of five years starting from the notification of the outcome of the procedure or, where the tenderer has been awarded a contract resulting from this call for tenders and the contract has been signed, the payment of the balance.

All documents must be signed by the signatories (when they are individuals) or by their duly authorised representatives.

For the following documents, when signed by representatives, tenderers must provide evidence for the delegation of the authorisation to sign:

- The Declaration on Honour of the tenderer (in case of joint tender – the Declarations on Honour of all group members);
- (in the case of joint tender) the Agreement/Power(s) of attorney drawn up using the model attached in **Annex 3**.

The delegation of the authorisation to sign on behalf of the signatories (including, in the case of proxy(-ies), the chain of authorisations) must be evidenced by appropriate written evidence (copy of the notice of appointment of the persons authorised to represent the legal entity in signing contracts (together or alone), or a copy of the publication of such appointment if the legislation which applies to signatory requires such publication or a power of attorney). A document that the contracting authority can access on a national database free of charge does not need to be submitted if the contracting authority is provided with the exact internet link and, if applicable, the necessary identification data to retrieve the document.

4.4. Confidentiality of tenders: what information and under what conditions can be disclosed?

Once the contracting authority has opened a tender, it becomes its property and shall be treated confidentially, subject to the following:

- For the purposes of evaluating the tender and, if applicable, implementing the contract, performing audits, benchmarking, etc., the contracting authority is entitled to make available (any part of) the tender to its staff and the staff of other Union institutions, bodies and agencies, as well to other persons and entities working for the contracting authority or cooperating with it,

¹⁸ See [here](#) how to apply a QES on a document exchanged with a European institution, body or agency.

including contractors or subcontractors and their staff, provided that they are bound by an obligation of confidentiality.

- After the signature of the award decision, the contracting authority shall inform each tenderer who is not rejected and who make a request in writing, will be notified of the name of the successful tenderer to whom the contract is awarded for the lot(s) for which the tenderer applied, the characteristics and relative advantages of the successful tender and its total financial offer amount. The contracting authority may decide to withhold certain information that it assesses as being confidential, in particular where its release would prejudice the legitimate commercial interests of economic operators or might distort fair competition between them. Such information may include, without being limited to, confidential aspects of tenders such as unit prices included in the financial tender, technical or trade secrets¹⁹.
- The contracting authority may disclose the submitted tender in the context of a request for public access to documents, or in other cases where the applicable law requires its disclosure. Unless there is an overriding public interest in disclosure²⁰, the contracting authority may refuse to provide full access to the submitted tender, redacting the parts (if any) that contain confidential information, the disclosure of which would undermine the protection of commercial interests of the tenderer, including intellectual property.

 The contracting authority will disregard general statements that the whole tender or substantial parts of it contain confidential information. Tenderers need to mark clearly the information they consider confidential and explain why it may not be disclosed. The contracting authority reserves the right to make its own assessment of the confidential nature of any information contained in the tender.

¹⁹ For the definition of trade secrets please see Article 2 (1) of [Directive \(EU\) 2016/943 on the protection of undisclosed know-how and business information \(trade secrets\) against their unlawful acquisition, use and disclosure](#).

²⁰ See Article 4 (2) of the [Regulation \(EC\) No 1049/2001 regarding public access to European Parliament, Council and Commission documents](#).

APPENDIX

Appendix 1 - List of references

Award criteria	See Section 3.3.2
Contracting authority	See Section 1.1
Entities on whose capacities the tenderer relies to fulfil the selection criteria	See Section 2.4.3
Exclusion criteria	See Section 3.1
Financial Regulation (FR)	Regulation (EU, Euratom) 2024/2509 of the European Parliament and of the Council of 23 September 2024 on the financial rules applicable to the general budget of the Union (recast) (OJ L, 2024/2509, 26.9.2024, ELI: http://data.europa.eu/eli/reg/2024/2509/oj).
Framework Contract	See Section 1.6
Framework Contract ceiling	See Section 1.7
Group leader	See Section 2.4.1
Group member	See Section 2.4.1
Identified subcontractors	See Section 2.4.2
Involved entities	See Section 2.4
Joint tender	See Section 2.4.1
Participating entities	See Section 1.1
Participant Register	See Section 2.3 https://ec.europa.eu/info/funding-tenders/opportunities/portal/screen/how-to-participate/participant-register
Selection criteria	See Section 3.2
Sole tenderer	See Section 2.4
Subcontracting/subcontractor	See Section 2.4.2
Treaties	The EU Treaties: https://europa.eu/european-union/law/treaties_en

Appendix 2 - List of EU-OSHA existing websites and applications



Appendix 2 - List of
EU-OSHA existing w

Appendix 3 - List of EU-OSHA tools



Appendix 3 - List of
EU-OSHA tools.pdf

Appendix 4 – Scenarios



Appendix 4 -
Scenarios.pdf

Appendix 5.1 Lot 1 - Service Level Agreement



Appendix 5.1 -
Draft PMS Service Le

Appendix 5.2 Lot 2 - Service Level Agreement



Appendix 5.2 -
Draft Plone Service L

Appendix 5.3 Lot 3 - Service Level Agreement



Appendix 5.3 -
Draft Microsoft Serv

ANNEXES

Annex 1: List of documents to be submitted with the tender or during the procedure

Description	Sole tenderer	Joint tender		Identified Subcontractor	Entity on whose capacity is being relied (that is not subcontractor)	When and where to submit the document?	Instructions for uploading in eSubmission (if applicable)	
		Group leader	Group member				How to name the file?	Where to upload?
1. Identification and information about the tenderer								
<i>eSubmission view</i>								
Declaration on Honour on Exclusion and Selection Criteria	☒	☒	☒	☒	☒	With the tender in eSubmission	'Declaration on Honour'	With the concerned entity under 'Parties'
(see Section 3.1)								→ 'Identification of the participant' → 'Attachments' → 'Declaration on Honour'.
<i>Model in Annex 2</i>								For entities that are not subcontractors and on whose capacity the tenderer relies to fulfil the selection criteria, the document must be uploaded in the section of the sole tenderer or group leader: → 'Identification of the participant' → 'Attachments' → 'Other documents'

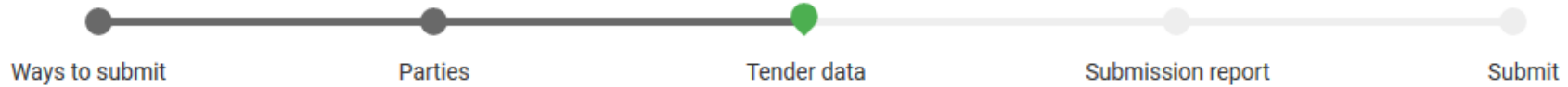
Evidence that the person signing the documents is an authorised representative of the entity ²¹ (see Section 4.3)	☒	☒	☒			With the tender in eSubmission (not applicable to natural persons)	'Authorisation to sign documents'	With the concerned entity under 'Parties' → 'Identification of the participant' → 'Attachments' → 'Other documents'
Agreement / Power of attorney (see Section 2.4.1) <i>Model in Annex 3</i>		☒	☒			With the tender in eSubmission	'Agreement_ Power of attorney'	In the group leader's section under 'Parties' → 'Identification of the participant' → 'Attachments' → 'Other documents'
List of identified subcontractors (see Section 2.4.2) <i>Model in Annex 4</i>	☒	☒				With the tender in eSubmission	'List of identified subcontractors'	In the sole tenderer's or the group leader's section under 'Parties' → 'Identification of the participant' → 'Attachments' → 'Other documents'
Commitment letter (see Section 2.4.2 and 2.4.3)				☒ (<i>Model in Annex 5.1</i>)	☒ (<i>Model in Annex 5.2</i>)	With the tender in eSubmission	'Commitment letter'	With the concerned entity under 'Parties' → 'Identification of the participant' → 'Attachments' → 'Other documents'
Evidence of non-exclusion (see Section 3.1)	☒	☒	☒	☒	☒	Tenderers (sole tenderers/all group members in case of a joint tender) must provide the evidence when requested by the contracting authority and, in any event, if a tenderer is successful, before the award of the contract. Subcontractors	n.a.	n.a

²¹ A document that the contracting authority can access on a national database free of charge does not need to be submitted if the contracting authority is provided with the exact internet link and, if applicable, the necessary identification data to retrieve the document.

						and entities on whose capacity a tenderer relies to fulfil the selection criteria must provide the evidence only upon request by the contracting authority.		
Evidence of legal existence, status and financial data Form "Business partners" (and supporting documents required) available in: https://commission.europa.eu/publications/business-partners-legal-entities-and-bank-accounts_en	☒	☒	☒			With the tender in eSubmission (only if the tenderer has never worked with the contracting authority before or if the information previously provided has changed)	'Evidence of legal existence, status' and financial data	With the concerned entity under 'Parties' → 'Identification of the participant' → 'Attachments' → 'Other documents'
Evidence of legal and regulatory capacity (see Section 3.2.1)						Only upon request by the contracting authority At any time during the procedure	n.a.	n.a.
Evidence of economic and financial capacity F1, F2 and F3 (see Section 3.2.2)	The documents must be provided only by the involved entities which contribute to reaching the minimum capacity level for criteria F1, F2 and F3					Only upon request by the contracting authority At any time during the procedure	n.a.	n.a.
Evidence of technical and professional capacity T1 (see Section 3.2.3)	The documents must be provided only by the involved entities who contribute to reaching the minimum capacity level for criterion T1					With the tender in eSubmission	'Mapping of PARFs' 'PARFs'	With the group leader or the sole tenderer under 'Parties' → 'Identification of the participant' → 'Attachments' → 'Technical and professional capacity'

2. Tender data

eSubmission view



Failure to upload the following documents in eSubmission will lead to rejection of the tender:

Technical tender (see Section 4.2)	☒	☒				With the tender in eSubmission	'Technical tender'	Under section 'Tender Data' → 'Technical tender'
Financial tender (see Section 4.2)	☒	☒				With the tender in eSubmission	'Financial tender'	Under 'Tender Data' → 'Financial tender'
<i>Model in Annex 6</i>								

Annex 2. Declaration on Honour on exclusion and selection criteria



Declaration of
honour EN 2025.doc

Annex 3. Agreement / Power of attorney

Call for tenders OSHA/2026/OP/0022 - [Lot X]

[TITLE OF THE PROCEDURE]

AGREEMENT/POWER OF ATTORNEY

The undersigned:

- **Signatory (Name, Function, Legal entity name, Registered address, VAT Number)**

- **Signatory 2 (Name, Function, Legal entity name, Registered address, VAT Number)**

- ...

- **Signatory N (Name, Function, Legal entity name, Registered address, VAT Number)]**

having the legal capacity required to act on behalf of the entities they represent,

HEREBY AGREES TO THE FOLLOWING:

- 1) To submit a joint tender (the tender) as members of a group of tenderers (the group), constituted by **[Insert names of Legal entity 1, Legal entity 2, ... Legal entity N – the name of the group leader must be included here!]** (the group members), and led by **[Insert name of Legal entity 1]** (the group leader), in accordance with the conditions of the procurement documents and the terms of the tender to which this Agreement/Power of attorney is attached.
- 2) If the contracting authority awards a contract resulting from this call for tenders (the contract) to the group on the basis of the tender to which this Agreement/Power of attorney is attached, all group members (including the group leader) shall be considered parties to the contract in accordance with the following conditions:
 - (a) All group members (including the group leader) shall be jointly and severally liable towards the contracting authority for the performance of the contract.
 - (b) All group members (including the group leader) shall comply with the terms and conditions of the contract and ensure the proper delivery of their respective share of the services and/or supplies subject to the contract.
- 3) Payments by the contracting authority related to the services and/or supplies subject to the contract shall be made through the bank account of the group leader indicated in the contract.
- 4) The group members grant to the group leader all the necessary powers to act on their behalf in the submission of the tender and the conclusion of the contract, including:
 - (a) The group leader shall submit the tender on its own behalf and on behalf of the other group members and indicate in the "Contact Person" section in eSubmission the name and e-mail address of an individual as a single point of contact authorised to communicate officially with the contracting authority in connection with the submitted tender on behalf of all group members, including in connection with all relevant questions, clarification requests, notifications, etc., that may be received during the evaluation, award and until the contract signature.
 - (b) The group leader shall sign any contractual documents — including the contract, and amendments thereto — and shall warrant the submission of any invoices related to the performance of the contract on behalf of all group members.
 - (c) The group leader shall act as a single contact point with the contracting authority in the delivery of the services and/or supplies subject to the contract. It shall coordinate the delivery of the

services and/or supplies by the group to the contracting authority, and shall see to a proper administration of the contract.

This Agreement/Power of attorney may be executed in counterparts, each of which shall be deemed to be an original, but all of which, taken together, shall constitute one and the same document.

Any modification to the present Agreement/Power of attorney shall be subject to the contracting authority's express approval. This Agreement/Power of attorney shall expire when all the contractual obligations of the group have ceased to exist. The parties cannot terminate it before that date without the contracting authority's consent.

Name
Function
Name of the legal entity

Name
Function
Name of the legal entity

signature[s]:

signature[s]:

Done at, on

Done at, on

Name
Function
Name of the legal entity

Name
Function
Name of the legal entity

signature[s]:

signature[s]:

Done at, on

Done at, on

Annex 4. List of identified subcontractors and proportion of subcontracting

Identification details	Roles/tasks during contract execution	Proportion of subcontracting (% of contract volume)
<i>[Full official name of the identified subcontractor, registered address, statutory registration number, VAT registration number]</i>		
<i>[Full official name of the identified subcontractor, registered address, statutory registration number, VAT registration number]</i>		
<i>[REPEAT AS MANY TIMES AS THE NUMBER OF IDENTIFIED SUBCONTRACTORS]</i>		
Other subcontractors that do not need to be identified under Section 2.4.2 ²²		
TOTAL % of subcontracting		0,00%

²² For this category of subcontractors, please provide in a general manner their intended roles/tasks during contract execution, as well as the aggregated % of contract volume for all non-identified subcontractors.

Annex 5.1. Commitment letter by an identified subcontractor

[Letterhead, if any]

[Contracting authority]

Call for tenders Ref. OSHA/2026/OP/0022

Attn:

[Insert date]

Commitment letter by identified subcontractor

I, the undersigned,

Name:

Function:

Legal entity:

Registered address:

VAT Number:

having the legal capacity required to act on behalf of **[insert name of the entity]** hereby confirm that the latter agrees to participate as subcontractor in the tender of **[insert name of the tenderer]** for the call for tenders **OSHA/2026/OP/0022 – [insert title of procedure] [Lot [insert lot number]]**.

In the event that the tender of the aforementioned tenderer is successful, **[insert name of the subcontractor]** commits itself to make available the resources necessary for performance of the contract as a subcontractor and to carry out the services that will be subcontracted to it in compliance with the terms of the contract. It further declares that it is not subject to conflicting interests which may negatively affect the contract performance and that it accepts the terms of the procurement documents for the above call for tenders, in particular the contractual provisions related to checks and audits.

Done at:

Name:

Position:

Signature:

Annex 5.2. Commitment letter by an entity on whose capacities is being relied

[Letterhead, if any]

[Contracting authority]

Call for tenders Ref. OSHA/2026/OP/0022

Attn:

[Insert date]

Commitment letter by an entity on whose capacity is being relied

I, the undersigned,

Name:

Function:

Legal entity:

Registered address:

VAT Number:

having the legal capacity required to act on behalf of **[insert name of the entity]** hereby confirm that the latter **authorises the [insert name of the tenderer] to rely on its [financial and economic capacity] [technical and professional capacity] in order to meet the minimum levels** required for the call for tenders **OSHA/2026/OP/0022 – [insert title of procedure] Lot [insert lot number]**.

In the event that the tender of the aforementioned tenderer is successful, **[insert name of the entity]** commits itself to make available the resources necessary for performance of the contract. It further declares that it is not subject to conflicting interests which may negatively affect the contract performance, and that it accepts the terms of the procurement documents for the above call for tenders, in particular the contractual provisions related to checks and audits.

Done at:

Name:

Position:

Signature:

Annex 6.1 Lot 1 - Financial offer form



Annex 6.1 Lot 1 -
Financial offer form.

Annex 6.2 Lot 2 - Financial offer form



Annex 6.2 Lot 2 -
Financial offer form.

Annex 6.3 Lot 3 - Financial offer form



Annex 6.3 Lot 3 -
Financial offer form.

Annex 7. Minimum requirements and technical and professional capacity



Annex 7 - Minimum
requirements and te